To be accomplished in Four (4) copies
PEZA Form No. 8105

REPUBLIC OF THE PHILIPPINES
**PHILIPPINE ECONOMIC ZONE AUTHORITY**
Manila, Philippines

№ 7800981

February 21, 2018
*Date*

## APPLICATION FOR PERMIT TO BRING GOODS FROM THE CUSTOMS TERRITORY INTO THE ZONE

To: THE PHILIPPINE ECONOMIC ZONE AUTHORITY

Permission is hereby requested to bring from the Philippine Customs territory into the Alphaland Southgate ECONOMIC ZONE the commodities described hereunder:

| No. of Pkgs. Units | Marks & Numbers | Description of Commodities | Quantity | Weights/ Measure-ments | Unit Value | Total Value |
|---|---|---|---|---|---|---|
| | | ISR4431-AX/K9 Cisco ISR 4431 AX Bundle with APP and SE | 1 | 11,050.00 | | 11,050.00 |
| | | SL-44-IPB-K9 IP Base License for Cisco ISR 4400 Serie | 1 | 0.00 | | 0.00 |
| | | FL-44-HSEC-K9 U.S. Export Restriction Compliance licen | 1 | 812.50 | | 812.50 |
| | | FL-44-PERF-K9 Performance on Demand License for 4400 S | 1 | 2,340.00 | | 2,340.00 |
| | | NIM-2GE-CU-SFP 2-port GE WAN NIM, dual-mode RJ45 & SFP | 1 | 1,166.75 | | 1,166.75 |
| | | PWR-4430-AC AC Power Supply for Cisco ISR 4430 | 1 | 0.00 | | 0.00 |
| | | PWR-4430-AC/2 AC Power Suppy (Secondary PS) for Cisco | 1 | 520.00 | | 520.00 |
| | | CAB-AC AC Power Cord (North America), C13, NEMA | 2 | 0.00 | | 0.00 |
| | | MEM-4400-4G 4G DRAM (2G+2G) for Cisco ISR 4400 | 1 | 0.00 | | 0.00 |
| | | MEM-FLSH-8G 8G eUSB Flash Memory for Cisco ISR 4430 | 1 | 0.00 | | 0.00 |
| | | ISRWAAS-RTU-1300 ISRWAAS RTU for 1300 connections | 1 | 0.00 | | 0.00 |
| | | MEM-4400-DP-2G 2G DRAM (1 DIMM) for Cisco ISR 4400 Data | 1 | 0.00 | | 0.00 |
| | | SL-44-APP-K9 AppX License for Cisco ISR 4400 Series | 1 | 0.00 | | 0.00 |
| | | NIM-BLANK Blank faceplate for NIM slot on Cisco IS | 2 | 0.00 | | 0.00 |
| | | SL-44-SEC-K9 Security License for Cisco ISR 4400 Seri | 1 | 0.00 | | 0.00 |
| | | SISR4400UK9-167 Cisco ISR 4400 Series IOS XE Universal | 1 | 0.00 | | 0.00 |
| | | **S.I. 8080053101 D.R. 86013028** | | | TOTAL | 15,889.25 |

PEZA Form 8105 SN: 7800981
For Operations Use

Use of goods in the Zone: US DOLLARS

Currency in which payment will be made: Dimension Data Philippines Inc. 26th floor Zuellig Building, Makati Ave cor Paseo de Roxas, Makati City 1225, Philippines

Name and Address of Supplier:

Internal Revenue Taxes paid on the goods: Zero Rated VAT

Date of Delivery to the Zone: Feb. 21, 2018 Carrier Dimension Data Philippines Inc

If goods were previously imported: (1) Country of origin N/A

(2) Import price ₱ N/A (3) Duties & Taxes paid ₱ N/A

(4) When imported N/A (5) Original imported N/A

I/We hereby certify that the data and other information contained in this application are true and correct and that the entry of the goods into the Zone is for the purpose stated and in accordance with applicable government rules and regulations.

2/26/18

Concur (Philippines) Inc. By: Haze Ruth Taparan, Country Director

*(Zone Enterprise & Registration No.)* *Name and Position of Authorized Official*

**PERMIT**

No. 02529-18 Date FEB 26 2018

To:

Permission is hereby granted to bring into the ALPHALAND SOUTHGATE TOWERS ECONOMIC ZONE from the Philippine Customs territory the commodities described above for the purpose stated.

1:46 E. L. Manalo 1:49

*Authorized Official* *Authorized Official*

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas, Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# Sales Invoice

**BILL TO:**
Concur (Philippines) Inc
7th floor Alphaland Southgate Tow
Chino Roces Avenue Corner EDSA
Makati 1231
VAT Reg. No 008-128-112-000

**SHIP TO:**
Concur (Philippines) Inc
7th floor Alphaland Southgate Tow
Chino Roces Avenue Corner EDSA
Makati 1231

VAT Reg. No 008-128-112-000

**Sales Invoice** 8080053101
Page 1 of 4

| | |
|---|---|
| Invoice Date | 15.02.2018 |
| Customer No | 1830685 |
| Terms for Delivery | Delivered at place |
| Payment Date | 14.04.2018 |
| Terms of Payment | 45 Days from Statement |

| | |
|---|---|
| Your Reference | 903681 |
| Our Reference | 236518 |
| Account Clerk | Jo Videna<br>+63 2 784 7082 |

| Item | Code<br>Description | Qty | UOM | Unit Price | Net Price | VAT AMOUNT |
|---|---|---|---|---|---|---|
| 10 | ISR4431-AX/K9 | 1 | EA | 11,050.00 | 11,050.00 | 0.00% |
| | Cisco ISR 4431 AX Bundle with APP and SE | | | | | |
| | Order Ref: 236518 / 10 Fulfillment Date: 12.02.2018 | | | | | |
| 20 | SL-44-IPB-K9 | 1 | EA | 0.00 | 0.00 | 0.00% |
| | IP Base License for Cisco ISR 4400 Serie | | | | | |
| | Order Ref: 236518 / 20 Fulfillment Date: 12.02.2018 | | | | | |
| 30 | FL-44-HSEC-K9 | 1 | EA | 812.50 | 812.50 | 0.00% |
| | U.S. Export Restriction Compliance licen | | | | | |
| | Order Ref: 236518 / 30 Fulfillment Date: 12.02.2018 | | | | | |

CERTIFIED TRUE COPY:

**Sub Total** 11,862.50 USD

| Bank: | Account: | IBAN: | SWIFT-Code |
|---|---|---|---|
| JPMORGAN CHASE BANK NA<br>Makati City | USD 0079165031 | | CHASPHMM |

Permit To Use(PTU)No. 050-CAS-081613-000735,Date Issued: August 16,2013 and Valid Until Revoked Series NO.8080050001 - 8093999999
Accreditation No: Date Issued andValid Until:
"THIS INVOICE SHALL BE VALID FOR FIVE (5) YEARS FROM THE DATE OF THE PERMIT TO USE"

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas, Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# Sales Invoice

**Sales Invoice** 8080053101



| Item | Code / Description | Qty | UOM | Unit Price | Net Price | VAT AMOUNT |
|---|---|---|---|---|---|---|
| 40 | FL-44-PERF-K9 | 1 | EA | 2,340.00 | 2,340.00 | 0.00% |
| | Performance on Demand License for 4400 S | | | | | |
| | Order Ref: 236518 / 40 Fulfillment Date: 12.02.2018 | | | | | |
| 50 | NIM-2GE-CU-SFP | 1 | EA | 1,166.75 | 1,166.75 | 0.00% |
| | 2-port GE WAN NIM, dual-mode RJ45 & SFP | | | | | |
| | Order Ref: 236518 / 50 Fulfillment Date: 12.02.2018 | | | | | |
| 60 | PWR-4430-AC | 1 | EA | 0.00 | 0.00 | 0.00% |
| | AC Power Supply for Cisco ISR 4430 | | | | | |
| | Order Ref: 236518 / 60 Fulfillment Date: 12.02.2018 | | | | | |
| 70 | PWR-4430-AC/2 | 1 | EA | 520.00 | 520.00 | 0.00% |
| | AC Power Supply (Secondary PS) for Cisco | | | | | |
| | Order Ref: 236518 / 70 Fulfillment Date: 12.02.2018 | | | | | |
| 80 | CAB-AC | 2 | EA | 0.00 | 0.00 | 0.00% |
| | AC Power Cord (North America), C13, NEMA | | | | | |
| | Order Ref: 236518 / 80 Fulfillment Date: 12.02.2018 | | | | | |
| 90 | MEM-4400-4G | 1 | EA | 0.00 | 0.00 | 0.00% |
| | 4G DRAM (2G+2G) for Cisco ISR 4400 | | | | | |
| | Order Ref: 236518 / 90 Fulfillment Date: 12.02.2018 | | | | | |

CERTIFIED TRUE COPY:

**Sub Total** 15,889.25 USD

**Bank:** JPMORGAN CHASE BANK NA Makati City
**Account:** USD 0079165031
**IBAN:**
**SWIFT-Code** CHASPHMM

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas, Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# Sales Invoice

Sales Invoice 8080053101



| Item | Code / Description | Qty | UOM | Unit Price | Net Price | VAT AMOUNT |
|---|---|---|---|---|---|---|
| 100 | MEM-FLSH-8G<br>8G eUSB Flash Memory for Cisco ISR 4430<br>Order Ref: 236518 / 100 Fulfillment Date: 12.02.2018 | 1 | EA | 0.00 | 0.00 | 0.00% |
| 110 | ISRWAAS-RTU-1300<br>ISRWAAS RTU for 1300 connections<br>Order Ref: 236518 / 110 Fulfillment Date: 12.02.2018 | 1 | EA | 0.00 | 0.00 | 0.00% |
| 120 | MEM-4400-DP-2G<br>2G DRAM (1 DIMM) for Cisco ISR 4400 Data<br>Order Ref: 236518 / 120 Fulfillment Date: 12.02.2018 | 1 | EA | 0.00 | 0.00 | 0.00% |
| 130 | SL-44-APP-K9<br>AppX License for Cisco ISR 4400 Series<br>Order Ref: 236518 / 130 Fulfillment Date: 12.02.2018 | 1 | EA | 0.00 | 0.00 | 0.00% |
| 140 | NIM-BLANK<br>Blank faceplate for NIM slot on Cisco IS<br>Order Ref: 236518 / 140 Fulfillment Date: 12.02.2018 | 2 | EA | 0.00 | 0.00 | 0.00% |
| 150 | SL-44-SEC-K9<br>Security License for Cisco ISR 4400 Seri<br>Order Ref: 236518 / 150 Fulfillment Date: 12.02.2018 | 1 | EA | 0.00 | 0.00 | 0.00% |

CERTIFIED TRUE COPY:

Sub Total 15,889.25 USD

Bank: JPMORGAN CHASE BANK NA Makati City
Account: USD 0079165031
IBAN:
SWIFT-Code CHASPHMM

Permit To Use(PTU)No. 050-CAS-081613-000735,Date issued: August 16,2013 and Valid Until Revoked Series NO.8080050001 - 8093999999
Accreditation No: Date Issued andValid Until:
"THIS INVOICE SHALL BE VALID FOR FIVE (5) YEARS FROM THE DATE OF THE PERMIT TO USE"

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas, Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# Sales Invoice

Sales Invoice 8080053101



| Item | Code / Description | Qty | UOM | Unit Price | Net Price | VAT AMOUNT |
|---|---|---|---|---|---|---|
| 160 | SISR4400UK9-167 | 1 | EA | 0.00 | 0.00 | 0.00% |

Cisco ISR 4400 Series IOS XE Universal

Order Ref: 236518 / 160 Fulfillment Date: 12.02.2018

ZERO RATED SALES

CERTIFIED TRUE COPY:

| | |
|---|---|
| Sub Total Excl. | 15,889.25 |
| VATable Sales | 0.00 |
| VAT AMOUNT | 0.00 |
| VAT Exempt | 0.00 |
| Zero Rated Sales | 15,889.25 |
| Total USD | 15,889.25 |

| Bank: | Account: | IBAN: | SWIFT-Code |
|---|---|---|---|
| JPMORGAN CHASE BANK NA Makati City | USD 0079165031 | | CHASPHMM |

Permit To Use(PTU)No. 050-CAS-081613-000735,Date Issued: August 16,2013 and Valid Until Revoked Series NO.8080050001 - 8093999999
Accreditation No: Date Issued andValid Until:
"THIS INVOICE SHALL BE VALID FOR FIVE (5) YEARS FROM THE DATE OF THE PERMIT TO USE"

Concur Copy

DB SCHENKER

# Delivery Receipt

SO Number : 86013028 PO No. : MARLON MALUNES

Delivered by : SCHENKER Philippines
KM 19 WEST SERVICE ROAD SABRINA COMP.
PARANAQUE CITY

Contact Person : Mr. Romuel Tolentino Contact No : (632) 976-3803

Delivered to : Concur
Concur (philippines Inc.
7th floor Alphaland Southgate Tow
Chino Roces Avenue Corner EDSA Makati City

D.R. No : 2018-0000002039
Order Date : 02/20/2018
Order Key: 0000002039

| SKU | Description | UOM | Lot Number | Expiry Date | Qty Requested | Qty Issued |
|---|---|---|---|---|---|---|
| ISR4431-AX/K9 | CISCO ISR 4431 AX BUNDLE WITH APP AND SEC LICENSE | STD | 4800007556 | | 1 | 1 |
| | | | | | 1 | 1 |

CERTIFIED TRUE COPY:

This is to acknowledge the receipt of the above goods/shipment to be in good order, with no external damage to the packaging. After this receipts has been accepted by both parties, SCHENKER Philippines will be free of any lien or claim resulting from any such claim on external packaging conditions.

For SCHENKER Personnel
Verified by : KURT RONSAVILLA
Date : 2/21/18 Time :

Page 1 of 1
Print date : 2/20/2018

For Customer Personnel
Received by :
Date :

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas,
Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# DELIVERY NOTE

Concur (Philippines) Inc
7th floor Alphaland Southgate Tow
Chino Roces Avenue Corner EDSA
Makati 1231
VAT Reg. No 008-128-112-000

**Delivery Note** 86013028
Page 1 of 5

| | | | |
|---|---|---|---|
| Date | 13.02.2018 | Our Reference | 236518 |
| Customer No | 1830685 | Dispatched by | Mercy BOLANTE |
| Your Reference | 903681 | | |

| Item | Code<br>Description | Serial Numbers | Ordered Qty | Already Delivered | Delivered Today | UOM | Back Ordered |
|---|---|---|---|---|---|---|---|
| 10 | ISR4431-AX/K9<br>Cisco ISR 4431 AX Bundle with APP and SE | Serial Numbers: ( FGL2203818T ) | 1 | 0 | 1 | EA | 0 |
| 20 | SL-44-IPB-K9<br>IP Base License for Cisco ISR 4400 Serie | Serial Numbers: ( DD61300688 ) | 1 | 0 | 1 | EA | 0 |
| 30 | FL-44-HSEC-K9<br>U.S. Export Restriction Compliance licen | Serial Numbers: ( DD61300689 ) | 1 | 0 | 1 | EA | 0 |
| 40 | FL-44-PERF-K9<br>Performance on Demand License for 4400 S | Serial Numbers: ( DD61300690 ) | 1 | 0 | 1 | EA | 0 |
| Subtotal: | | | 4 | 0 | 4 | EA | 0 |

CERTIFIED TRUE COPY:

Permit To Use (PTU) No 050-CAS-081613-000735,Date Issued: January 20, 2014 and Valid Until Revoked. Series NO. 86000001 -86999999
Accreditation No: Date Issue and Valid Until:
**"THIS DOCUMENT SHALL BE VALID FOR FIVE (5) YEARS FROM THE DATE OF THE PERMIT TO USE**
**"THIS DOCUMENT IS NOT VALID FOR CLAIM OF INPUT TAX"**

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas,
Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# DELIVERY NOTE

**Delivery Note** 86013028


| Item | Code<br>Description | Serial Numbers | Ordered Qty | Already Delivered | Delivered Today | UOM | Back Ordered |
|---|---|---|---|---|---|---|---|
| 50 | NIM-2GE-CU-SFP<br>2-port GE WAN NIM, dual-mode RJ45 & SFP | Serial Numbers: ( FOC214938TR ) | 1 | 0 | 1 | EA | 0 |
| 60 | PWR-4430-AC<br>AC Power Supply for Cisco ISR 4430 | Serial Numbers: ( LIT21484N6T ) | 1 | 0 | 1 | EA | 0 |
| 70 | PWR-4430-AC/2<br>AC Power Supply (Secondary PS) for Cisco | Serial Numbers: ( LIT21484PUA ) | 1 | 0 | 1 | EA | 0 |
| 80 | CAB-AC<br>AC Power Cord (North America), C13, NEMA | | 2 | 0 | 2 | EA | 0 |
| 90 | MEM-4400-4G<br>4G DRAM (2G+2G) for Cisco ISR 4400 | Serial Numbers: ( DD61300691 ) | 1 | 0 | 1 | EA | 0 |
| 100 | MEM-FLSH-8G<br>8G eUSB Flash Memory for Cisco ISR 4430 | Serial Numbers: ( STP21460F4Q ) | 1 | 0 | 1 | EA | 0 |
| 110 | ISRWAAS-RTU-1300<br>ISRWAAS RTU for 1300 connections | Serial Numbers: ( DD61300692 ) | 1 | 0 | 1 | EA | 0 |
| 120 | MEM-4400-DP-2G<br>2G DRAM (1 DIMM) for Cisco ISR 4400 Data | Serial Numbers: ( STP21500TH9 ) | 1 | 0 | 1 | EA | 0 |
| **Subtotal:** | | | **13** | **0** | **13** | **EA** | **0** |

CERTIFIED TRUE COPY:

Permit To Use (PTU) No 050-CAS-081613-000735,Date Issued: January 20, 2014 and Valid Until Revoked. Series NO. 86000001 -86999999
Accreditation No: Date Issue and Valid Until:
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Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas,
Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# DELIVERY NOTE

**Delivery Note** 86013028


| Item | Code / Description | Serial Numbers | Ordered Qty | Already Delivered | Delivered Today | UOM | Back Ordered |
|---|---|---|---|---|---|---|---|
| 130 | SL-44-APP-K9<br>AppX License for Cisco ISR 4400 Series | Serial Numbers: ( DD61300693 ) | 1 | 0 | 1 | EA | 0 |
| 140 | NIM-BLANK<br>Blank faceplate for NIM slot on Cisco IS | | 2 | 0 | 2 | EA | 0 |
| 150 | SL-44-SEC-K9<br>Security License for Cisco ISR 4400 Seri | Serial Numbers: ( DD61300694 ) | 1 | 0 | 1 | EA | 0 |
| 160 | SISR4400UK9-167<br>Cisco ISR 4400 Series IOS XE Universal | Serial Numbers: ( DD61300695 ) | 1 | 0 | 1 | EA | 0 |
| Total: | | | 18 | 0 | 18 | EA | 0 |

CERTIFIED TRUE COPY:

**GOODS RECEIVED IN GOOD CONDITION**

**Received by:** _____ **(Please complete in CAPITAL BLOCK letters)**

**Signature:** _____ **Date:** _____

Permit To Use (PTU) No 050-CAS-081613-000735,Date Issued: January 20, 2014 and Valid Until Revoked. Series NO. 86000001 -86999999
Accreditation No: Date Issue and Valid Until:
**"THIS DOCUMENT SHALL BE VALID FOR FIVE (5) YEARS FROM THE DATE OF THE PERMIT TO USE**
**"THIS DOCUMENT IS NOT VALID FOR CLAIM OF INPUT TAX"**

**Dimension Data Philippines Inc**
**26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas,**
**Makati City 1225, Philippines**
**VAT Reg TIN 005-121-624-00000**

# DELIVERY NOTE

**Delivery Note** **86013028**



COMMERCIAL IN CONFIDENCE

DIMENSION DATA
GENERAL TERMS AND CONDITIONS OF SALE

1. DEFINITIONS
"DD" means the local Dimension Data entity.
"DD Warranty" means any warranty which DD may from time to time provide to Purchaser in respect of Products or Services.
"DD Quote" means this document which provides information of the Products and the price.
"Delivery Date" means the date on which Products leave DD or its supplier's premises for delivery to the Purchaser. "Order" means an order placed with DD for the supply of Products or Services.
"Products" mean the Products (including software forming part of the Products) supplied or to be supplied by DD. "Purchaser" means any person or corporate entity which issues DD a purchase order in response to a DD Quote whether or not such person or corporate entity enters into an agreement with DD (or the purchase of Products or the provision of the Services including its executors, administrators, successors and permitted assigns).
"Services" mean the installation services supplied or to be supplied by DD. The terms herein do not contemplate any managed services, support and maintenance services or professional services performed by DD (collectively "Professional Services"). The terms herein expressively exclude such Professional Services. Should these Professional Services be quoted in the DD Quote and thereafter accepted by Purchaser, without any additional paperwork, Purchaser agrees, that the DD standard Managed Services Agreement terms, Consulting Services Agreement and Uptime (Maintenance and Support) Services terms will be apply and be incorporated by reference.

2. FORMATION OF CONTRACT
Each order constitutes an offer by the Purchaser to acquire the Products or Services subject to the Terms and Conditions. A contract shall be made between DD and the Purchaser for the supply of Products or Services only if an order has been accepted by DD. Any pricelists or quotations given by DD to a Purchaser do constitute an offer to provide Products and Services to the Purchaser.

These Terms and Conditions supersede all previous terms and conditions and may only be varied with the written consent at DD. Any subsequent Purchase terms and conditions conforming this DD Quote or order is not applicable and will be rendered null and void.

3. PRICES QUOTED
The prices quoted are based on the quantities of Products referred to in the DD Quote. DD reserves the right to amend the prices quoted should there be any variation in the quantity at Products and/or Services ultimately supplied. Unless otherwise advised, all DD Quotes are valid for 30 days from the date of issuance. The Purchaser acknowledges and agrees that the prices quoted are C.I.F. unless otherwise specified. The Purchaser acknowledges however that the prices for Products or Services are subject to change without notice due to changes in supplier quotes, exchange rates, tariffs or either government charges.

4. PACKING
Unless otherwise stated, the price quoted includes commercial packaging as is as shipped by the original equipment manufacturers/suppliers. It is agreed that special packaging required by the Purchaser or deemed necessary by DD would be made to the Purchaser's account.

5. INSPECTION
If the Purchaser desires to inspect the Products before delivery, such an inspection must be made at DD's premises. If DD and is required to provide assistance in the Purchaser's inspection of the Products prior to delivery in excess of 15 minutes per unit, such assistance will be provided at DD's standard rates current at the time of the inspection. The Purchaser shall be deemed to have accepted the Products as soon as the inspection shall have been completed unless Purchaser forthwith makes an objection to DD regarding the quantity or otherwise of the Products. If no such inspection is made, the Purchaser shall be deemed to have accepted the Products when they are delivered.

6. DELIVERY
Risk of loss or damage to the Products will pass to the Purchaser on and from the Delivery Date. The Purchaser hereby appoints DD and its agent to forward, deliver, carry, install and store the Products. If after the Delivery Date the Products continue to remain in the possession of DD, the Purchaser must pay such storage and handling charges as DD may charge. Any terms to as to quantity of Products to be delivered or time of delivery of Products or Services agreed between DD and Purchaser are not of the essence. DD may make partial deliveries and invoice each partial delivery separately and the Purchaser cannot reject Products or Services on basis of partial or late delivery.

7. INSURANCE
The Purchaser must maintain adequate Insurance cover with a reputable insurer to cover any insurable. Loss in respect of Products howsoever caused between the Delivery Date and the time that title in the Products passes to the Purchaser, and the Purchaser must produce certificates of currency relating to such insurance to DD upon request.

8. RESERVATION OF TITLE
Notwithstanding delivery or anything contain in these terms and conditions, the title in the Products sold hereunder shall not pass to the Purchaser until receipt of payment in full by DD of the price for the Products sold to the Purchaser by DD hereunder. DD's title shall subsist notwithstanding such Products shall be incorporated in or become components or constituents of Products or that such Products or such other Products shall be sold or transferred to third parties by the Purchaser. Any such sale by the Purchaser shall be subject to DD's title in the Products and the Purchaser shall, if required by DD account to DD account for all the proceeds of sale attributable to such Products. The Purchaser grants to DD an irrevocable license to enter the Purchaser's premises, exercisable upon the happening of any event listed in clause 13 or upon any breach of the provisions of clause 16, which license to enter permits DD at its sole option, to enter the Purchaser's premises and repossess and remove all or any Products which has not been paid for.

9. INSTALLATION
DD shall install the Products in the premises of the Purchaser upon request by the Purchaser and subject to payment of the Services charges as imposed by DD. DD shall have no liability under the warranty or otherwise for losses sustained as a result of faulty installation not performed by DD. Any liability for the Services will be capped at the amount of the Service performed.

10. FORCE MAJEURE
DD shall not be liable for delay in delivery nor for any failure to perform this contract for loss or damage to Products directly or indirectly caused by force majeure, which term is to include acts of God, fire, theft, war, terrorism, embargo, strikes, shortage of labour, delays in delivery of Products or materials by suppliers or sub-suppliers (as the case may be), prohibition of export or import, confiscation, action of any government and any other occurrence (whether or not similar in nature to those specified) beyond the control of DD. DD agrees to make and the Purchaser agrees to accept delivery whenever such causes of delay have been remedied. During the continuance of an event of force majeure, each party's obligations hereunder (other than to pay) shall be suspended and will resume as soon as possible after the cause or circumstance had ceased to have effect.

11. PAYMENT
The Purchaser must pay the full amount of DD's invoice without deduction or set-off within 30 days of the date of DD's invoice.

DD may charge and the Purchaser agrees to pay interest on all amounts overdue at the prevailing overdraft interest from the date of default until the day on which the payment is received by DD.

12. CANCELLATION

The Purchaser may by notice in writing to DD cancel an order before the scheduled date of the delivery of the Products or Services provided that the Purchaser shall be liable to pay the following charges:
(a) If DD receives cancellation less than 30 days before the scheduled date of delivery, 100% of the contract value of Products or Services;
(b) If DD received cancellation not less than 30 days before the scheduled date of delivery, 50% of the contract value of Products or Services;
(c) If DD receives cancellation not than 45 days before the scheduled date of delivery, 25% of the contract value of Products or Services;
(d) If DD receives cancellation not than 60 days before the scheduled date of delivery, 5% of the contract value of Products or Services; or US$250.00 whichever is the greater.

13. TERMINATION
DD shall have the right to terminate this contract if the Purchaser:
(a) Commits a breach of any provision of this contract and fails to remedy that breach within seven (7) days after the notice in writing to do so;
(b) Commits an act of bankruptcy or enters into voluntary or compulsory liquidation or suffers any receiver or manager to be appointed in respect of its assets or any portion thereof;
(c) Negotiates or makes any agreement of composition amongst its creditors or
(d) Has execution levied on its assets or any portion thereof.

14. RETURN OF PRODUCTS
The Purchaser is required to give DD written notice of any claim of defects not later than fifteen (15) days after the delivery Date. No Products are to be returned without prior written authorization and shipping instructions first having been obtained from DD. Other than for defects on the Products, the Purchaser's right to return any Products are subject to the return policies imposed by the applicable manufacturer and DD. No credit for items delivered to the Client will be issued by Dimension Data without prior written approval from Dimension Data. Such approval, when provided, must be in form of a written Return Material Authorization (RMA), which must accompany the returned Products. Defective Products returned as dead on arrival (DOA), under warranty or non-compliant with ordered specifications, will be directly replaced at manufacturers' or DD's cost. For all other non-defective returns, freight, boarding and other charges will be on Purchaser's account. Client will comply with all RMA requirements including but not limited to the return of the applicable Products within the specified time period.

15. WARRANTY
15.1 Subject to any DD Warranty and unless otherwise expressly provided in these Terms and Conditions:
(a) All terms, conditions, warranties, undertakings or representations whether express, implied or otherwise relating in any way to Products or Services supplied or to these Terms and Conditions are excluded or limit to the fullest extent permissible by law; and
(b) DD hereby assigns to Purchase any rights under any warranties in respect of the Products, copies of which will be supplied on request, and DD will assist Purchaser at Purchaser's expense in enforcing Purchaser's rights under such warranties. EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, NO WARRANTY, CONDITION, UNDERTAKING OR TERM, EXPRESSED OR IMPLIED, STATUTORY OR OTHERWISE AS TO THE CONDITION, QUALITY PERFORMANCE, MERCHANTIBILITY, DURABILITY, FOR PURPOSE OF ANY THIRD-PARTY PRODUCT IS GIVEN OR ASSUMED BY DD AND ALL SUCH WARRANTIES, CONDITIONS,UNDERTAKING AND TERMS ARE HEREBY EXCLUDED.
15.2 The Purchaser warrants, acknowledges and agrees that it has not relied on any representation made by DD stated expressly in these Terms and Conditions or upon any descriptions or illustrations or specifications contained in any document of any nature, including any catalogue, list, brochure or publicity material, produced by DD or supplied to the Purchaser in relation to the supply of any Products or Services. To the extent that the United Nations Convention on Contracts for the International Sale of Goods would otherwise apply to the supply of any Products or Services it is agreed that such Convention does not apply.

16. LIMITATION OF LIABILITY

Dimension Data Philippines Inc
26th Floor Zuellig Building, Makati Ave cor Paseo de Roxas,
Makati City 1225, Philippines
VAT Reg TIN 005-121-624-00000

dimension data

# DELIVERY NOTE

**Delivery Note** 86013028



DD's maximum liability for any single of a number of claims whatsoever arising out of or in connection with the performance of these Terms and Conditions will be limited to an amount not exceeding 10% of the amount of fees and charges paid by the Purchaser to DD under the order/contract.

DD is not liable to the Purchaser in contract, in tort, in equity, by operation of statute (to the extent liability maybe excluded by law) or otherwise of any kind of indirect or consequential loss or damage, loss of opportunity, loss of revenue, loss of profit or anticipated profit, loss of contracts, loss of goodwill, loss arising from business interruption or liability arising out of or in connection with pollution or contamination arising out of or in connection with these Terms and Conditions.

17. DESIGN/INTELLECTUAL PROPERTY
DD (or its supplier) may at any time change the specification, method of construction or design of the Products and the Purchaser must accept those Products, provided they still meet the Purchaser's requirements. The Purchaser agrees that DD or its supplier is and remains the owner of all copyright, designs, patents and trademarks and other intellectual property rights (and all adaptations and reproductions thereof) used on or in relation to the Products and / or any related software and documentation supplied therewith. The Purchaser must not reproduce or adapt any documentation supplied with the Products and / or Services without the prior written consent of DD. The Purchaser shall not alter, obscure or obliterate any copyright notice or other notice of proprietorship printed or affixed to or included in and Products, the software included in any other Product, or any documentation supplied with the Products and / or Services. All software forming part of a Product is provided on a license basis for the use of the Purchaser only. No proprietary rights of any nature in any aspect of the software whatsoever shall be created in the Purchaser. The license to use the software shall be non-exclusive and personal to the Purchaser and the software may only be used in connection with the Products or such other equipment agreed in writing with DD. The Purchaser's right to use the software may not be assigned or sub-licensed without the consent of DD. If needed or applicable, the Purchaser agrees on the request of DD to execute a software license agreement with DD or with a supplier to DD.

18. EXPORT TO CONTROL
Some of the Products sold hereunder are licensed by the United States Government for an ultimate destination within the territory this DD Quote is issued, and may not be exported by the Purchaser or any third party without prior written authorization of DD. Customer who exports, re-exports or imports Products, technology, or technical data assumes responsibility for complying with applicable laws and regulations and for obtaining required export and import authorizations.

19. COMPLETENESS AND PERFORMANCE OF AGREEMENT
Clerical errors may be corrected by DD but special terms and conditions not contained herein and variations of these Terms and Conditions of any resultant contract may only be agreed between the parties in writing. Any terms or conditions inconsistent with or in addition to these terms and conditions shall be void and of no effect, unless specifically agreed to by DD in writing. No waiver or omission by either party to require the performance or observance by the other of any of the terms and conditions of the contract or any indulgence granted or shown by one party to the other shall release discharge or in any manner effect or prejudice the right of a party on any other occasion without notice to require strict and full performance and observance by the other of his obligations thereunder.

20. SEVERABILITY
If all or part of these Terms and Conditions infringes any law where this DD Quote is issued. It must be read down so that it does not infringe that law, otherwise it will be deemed void and severable.

21. ASSIGNMENT
The Purchaser may only assign an order and any rights under the resulting contract with the prior written consent of DD, which DD may refuse or grant in its absolute discretion.

DD may assign an Order or any of its rights and obligations hereunder to any related corporation of DD.

22. NOTICES
All notices to be given under these Terms and Conditions shall be in English and in writing and may be given to all other party by hand delivery, prepared post or facsimile addressed to the other party at its last known address.

23. GOVERNING LAW
The Order and these Terms and Conditions will be governed by the laws where this DD Quote was issued.